

Birta Abolition Act, 1959

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Amending Acts

Royal Seal and Publication Date

1. Birta Abolition (Amendment) Act, 2018 2018.10.23 2018.10.24
2. Compensation Act, 2019 2019.12.30
3. Birta Abolition (Amendment) Act, 2024 2024.7.6
4. Revenue Tribunal Act, 2031 2031.4.18
5. Special Court Act, 2031 2031.6.20
6. Judicial Administration Reform (First Amendment) Act, 2033 2033.4.10
7. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
8. Judicial Administration Act, 2048 2048.2.16
9. Birta Abolition (Third Amendment) Act, 2049 2049.5.29

Certification and Publication Date

10. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7

Act No. 16 of the year 2016

An Act made to abolish Birta land and fix land tax

Preamble: Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to generate a feeling and condition of equality among various classes of people of and maintain good relations, and Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to maintain and strengthen the convenience and economic interest of the people of and provide facilities, it is desirable to end the feudal practice of enjoying land without paying state tax,

Therefore, Parliament has enacted this Act in the fifth year of the reign of His Majesty King Mahendra Bir Bikram Shah Dev. 1. Short title, extent and commencement: (1) This Act may be called the "Birta Abolition Act, 2016".

(2) This Act shall extend to the whole of Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force immediately. 2.

Definitions: (1) Unless the subject or context otherwise requires, in this Act,- (a) "Birta land" means all types

of land obtained or held as of right with full remission of government land revenue or with payment of less land revenue than that levied on similar types of Raikar land in that locality, and also includes land defined in clauses (b) and (c). (b) "Birta land of category 'A'" means Birta land obtained with the right to collect and enjoy up to the assessed land revenue, or however obtained, Birta land upon which some or no tax is payable to the Government of Nepal and which is held with the right to collect and enjoy up to the assessed land revenue or according to the amount of land revenue, and also includes uncultivated fallow land and forest Birta land. (c) "Birta land of category 'B'" means all other Birta land except Birta land of category 'A'. (d) "Birtawal" means a person in whose name Birta land is registered, or in whose name a deed granting Birta land exists, or who has enjoyed land as Birta land, and also includes a person entitled to enjoy such person's Birta land, and if such person has given it for enjoyment under usufructuary mortgage or any other arrangement, includes that person or his successors-in-interest enjoying such land for the duration of such enjoyment. (e) "Land revenue" means, in relation to Raikar land, the assessed cash or kind or both types of revenue payable to the Government of Nepal by the person in whose name such land is registered (hereinafter referred to in this Act as the Raikar tenant), and in relation to Birta land, this term also means a similar assessed land revenue (equivalent to that of adjacent Raikar land) collected by the Birtawal and also includes any amount added on a percentage basis to such land revenue with or without the consent of the tenant of the Birta land according to the rights obtained by the Birtawal.

Amended by the Birta Abolition (Amendment) Act, 2024.(f) "Revenue Office" means the government revenue office of the Government of Nepal responsible for collecting and recovering land revenue, and also includes the Land Administration Office in places where the Revenue Office has been abolished.

(g) "Income" in relation to Birta land means cash or kind collected in excess of the land revenue by giving the land for cultivation on a tenancy basis to someone with or without a written deed. Added by the Birta Abolition (Amendment) Act, 2024.(h) "Chief of the Revenue Office" shall also be understood to mean the Land Administrator. Deleted by the Judicial Administration Reform (Fourth Amendment) Act, 2043.(i)

(2) Deleted by the Judicial Administration Reform (Fourth Amendment) Act, 2043.

(3) For the removal of doubt when making a decision pursuant to sub-section (2), it is clarified that if a person has given some part of one and the same parcel or plot of Birta land for cultivation to someone with or without a written deed to collect only the land revenue and some part to collect income, or has cultivated some part of such land himself, then even if it is one and the same parcel or plot, the part given to collect only up to the land revenue shall be considered Birta land of category "A" and the part given to collect income or cultivated by himself shall be considered Birta land of category "B". 3. Abolition of Birta: (1) The Birta system existing in Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. is hereby abolished from the date of commencement of this Act, and all Birta lands existing up to the day preceding the date of commencement of this Act are abolished.

(2) All Birta lands located in Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. abolished pursuant to sub-section (1) shall be converted into Raikar, and land ownership shall vest in the Government of Nepal, and the rights and interests related to land ownership of the Birtawal in such Birta lands existing prior to the commencement of this Act shall be deemed to have automatically ceased.

(3) Any law, regulation, Sanad, or any other document conferring or maintaining rights and interests related to land ownership of any person in Birta land are hereby repealed and annulled from the date of commencement of this Act. 4.

Fixing and registering land tax: (1) Subject to Section 11, on lands converted to Raikar pursuant to this Act, land tax is hereby fixed as follows, applicable from the fiscal year 2016-17 on the basis of annual assessment:- (a) For Birta land of category "A", according to the amount of land revenue that the Birtawal used to collect from the tenant of the Birta land. Provided that if there is fallow land or forest with no tenancy registration or cultivation in anyone's name, it shall be cut off from the Birta ledger. Amended by the Birta Abolition (Amendment) Act, 2018.(b) For Birta land of category "B" in Kathmandu Valley as follows:- Irrigated (Khet) Dry Upland (Pakho) (1) Per 1 Ropani of Awal N.Rs. 3.- N.Rs. 1.14 (2) Per 1 Ropani of Dwayam N.Rs. 2.44 N.Rs. 1.94 (3) Per 1 Ropani of Seem N.Rs. 1.69 N.Rs. 1.56 (4) Per 1 Ropani of Chahar N.Rs. 1.12 N.Rs. 1.37 Provided that for Birta land of category "B" in Kathmandu Valley:- (1) If the rate of land tax payable for the fiscal year 2016-17 at half the rate of the land revenue levied on adjacent Raikar land is lower than the said rate, land tax for that year for such Birta land shall be levied at that lower rate. (2) If the rate of land tax payable for the fiscal year 2017-18 according to the amount of land revenue levied on adjacent Raikar land is lower than the said rate, land tax for that year for such Birta land shall be levied at that lower rate. For Birta land of category "B" in other hilly areas and Terai areas of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., according to the amount of land revenue levied on adjacent Raikar land. Provided that for the fiscal year 2016-17, only half of the amount of land revenue levied on adjacent Raikar land shall be taken. Added by the Birta Abolition (Amendment) Act, 2018.(c) If any person has already paid more land tax for the fiscal years 2016-17 and 2017-18 than what is payable according to clause (b), upon submitting a written claim with supporting evidence, the excess amount paid as proven shall be refunded to such person. (2) The Chief of the Local Revenue Office shall determine the land tax fixed pursuant to sub-section (1), and shall register such Birta land as Raikar, prepare a ledger, and collect the land tax as follows:- (a) For Birta land of category "A", in the name of the tenant of the Birta land.

Provided that uncultivated fallow land and forest shall not be registered in anyone's name and shall be treated like other fallow land and forest of the Government of Nepal.

(b) For Birta land of category "B", in the name of the Birtawal. Provided that if the land is registered in the name of a person enjoying it under usufructuary mortgage or a successor-in-interest to whom such enjoyment has been transferred, such person's right shall subsist only in the form of usufructuary mortgage, and such person shall not be entitled to refuse redemption under prevailing Nepal law, and the person redeeming shall retain the right to register it as Raikar in his own name.

(3) Any person dissatisfied with the rate determined pursuant to sub-section (2) for Birta land of category "B" may appeal to the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Chief District Officer, and any person dissatisfied with the decision of the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Chief District Officer may appeal to the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. relevant Revenue Tribunal.

(4) If in adjacent or nearby similar Raikar land in the area of Birta land of category "B" the land revenue is lower on one side and higher on the other, the land tax shall be determined by maintaining the higher rate until another order of the Government of Nepal.

(5) If any kind of tax or due was payable to the Government of Nepal on land for which land tax is fixed under this Act, prior to the commencement of this Act, such tax or due shall be deemed to be included in the land tax, and the ledger for such tax or due shall be cut off. 5. Revenue Officer may call for documents: (1) If the Revenue Officer wishes to examine documents related to Birta lands converted to Raikar under this Act, he

may issue a written order to the Birtawal or to the Birtawal's agent appointed for the supervision or management of the Birta to present such documents.

(2) If any person fails to comply with the order given by the Revenue Officer under sub-section (1), the Revenue Officer may impose a fine of up to N.Rs. 500.-- five hundred on such person and may also seize the documents. 6.

Payment of land tax: (1) Unless other arrangement is made, the land tax fixed under Section 4 shall be paid at the local Revenue Office by the tenant, if there is a tenant (Jimidar), through the tenant (Jimidar), and if there is no tenant (Jimidar), by the person registered under sub-section (2) of Section 4, in the same manner as the land revenue of Raikar land is paid, and the prevailing Nepal law relating to the payment and collection of land revenue shall also apply to the payment and collection of such land tax. Added by the Birta Abolition (Amendment) Act, 2018. Provided that, for the fiscal years 2016/17 and 2017/18, the land tax payable and collectible under this Act may be paid and collected in installments as specified by the Government of Nepal by publishing a notice in the Nepal Gazette. (2) Without prejudice to the generality of the matters stated in sub-section (1), if the land tax under Section 4 is in arrears, proceedings shall be taken and recovery made in the same manner as for arrears of land revenue of Raikar land. (3) From the date of commencement of this Act, a Birtawal having Birta land of category "A" for which land tax has been fixed under Section 4, or his agent, shall not be entitled to collect or receive the land revenue of such land. (4) A Birtawal having Birta land of category "B" for which land tax has been fixed under Section 4 may add the land tax to the rent or dues collected from the person cultivating the land and recover it. (5) If there are Jimidars, Patwaris, Jimma Walls, or Thari Mukhiyas in relation to Birta land, their rights and obligations shall be similar to those of such persons for Raikar land. (6) The Birta revenue offices existing on behalf of the Birtawal to perform the Birtawal's work shall, from the date of commencement of this Act, be converted into Revenue Offices of the Government of Nepal, and the Birta-related documents in such offices shall be deemed to be documents of the Government of Nepal. (7) The employees of the Birtawal in offices converted into government offices under sub-section (6) shall be deemed to be civil servants of the Government of Nepal. 7.

Registration required: Amended by the Birta Abolition (Amendment) Act, 2024. (1) A Birtawal of category "B" shall, within 120 days of the commencement of this section, submit the following details of his Birta land and any outstanding land tax or land revenue to the local Revenue Office, or to the Land Administration Office in places where the Revenue Office has been abolished, and get it registered, and after the outstanding land tax or land revenue is deposited, the Revenue Office or Land Administration Office shall issue a certificate of submission of such details and register such land in his name in its records and also in the land survey master ledger. (a) Area of the Birta land (Bigha, Ropani, etc.), and if such records are not available, the approximate area, and if known, the boundaries of the land, (b) If a land survey has been conducted by the Government of Nepal, the amount of land revenue or land tax determined by such survey, and in case of receiving Birta cultivated land, the amount of Birta land revenue fixed at the time of receiving it, (c) Names of persons cultivating the land, the area cultivated by them, and the rent or dues payable to each Birtawal, (d) Any other matter specified by the Government of Nepal. (2) If there is a Birtawal of Birta land of category "A" or a Birtawal managing any Birta land, the person-in-charge (Incharge) of such estate shall have the duty to submit the necessary documents with details as per sub-section (1) to the Local Revenue Office, and if the Birtawal ordinarily resides outside Nepal, the person supervising or managing his Birta shall also have such duty. (3) If the details required to be submitted under sub-section (1) or (2) are not submitted, or if submitted, Added by the Birta Abolition (Amendment) Act, 2018. it is found that specific matters have been knowingly misrepresented, each person having the duty to submit such details under sub-section (1) or (2) may be

punished by the Chief of the Local Revenue Office with a fine of up to Rs. 1000/-- or imprisonment for up to 1 year or both. (4) Deleted by the Birta Abolition (Third Amendment) Act, 2049 Amended by the Birta Abolition (Amendment) Act, 2024.(5) An appeal against the order of punishment under sub-section (3) may be made to the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. relevant Revenue Tribunal.

Added by the Birta Abolition (Amendment) Act, 2024.(6) If the owner or tenant of land, which is Birta land of category "B" abolished and converted into Raikar under this Act, wishes to have his land surveyed, the Local Revenue Office may, upon executing an agreement to pay survey expenses at the rate of 10 percent of the land tax per annum for up to 5 years, arrange for a Plane Table Survey to be conducted as appropriate. 7A. Person cultivating land may get Birta land registered: (1) A person cultivating Birta land of category "B" shall, within the period specified by the Government of Nepal after the commencement of this section, submit an application to the Revenue or Land Revenue Office of the concerned district for registration of such land in his name, stating his available evidence or evidence known to him, and the plot number, four boundaries, name, surname, residence, rent, dues of the Birtawal.

(2) Upon receipt of an application under sub-section (1), if after necessary inquiry into the application, it appears that the land mentioned is not already registered in the name of a Birtawal or does not fall under Raj Guthi and is former Birta land registrable in the name of the applicant, the Revenue or Land Revenue Office shall, upon collecting fees and charges specified by the Government of Nepal by publishing a notice in the Nepal Gazette, register such land in his name. 8. Revenue Officer to exercise certain powers of court: While performing his duties under this Act, the Chief of the Revenue Office shall have the authority of a court for taking statements, requiring submission of written evidence, issuing summons in the name of witnesses, conducting spot inspections, etc. 9. Compensation: (1) Compensation as specified in the Schedule shall be paid by the Government of Nepal to a Birtawal holding Birta land of category "A", Deleted by the Compensation Act, 2019

(2) In calculating the compensation payable under sub-section (1), it shall be calculated as a percentage of the one year's land revenue determined to have been received by a Birtawal having conclusive proof of right and enjoyment. Provided that, for the purposes of compensation mentioned in this section, the Government of Nepal shall not recognize any deed under Rs.

100/- for which proof of registration or enjoyment up to the year 2015 does not exist, except as done or to be done according to a judgment given by a court in pending litigation, nor shall it recognize any deed executed after Shrawan 24, 2016, whether registered or not. (3) In calculating the land revenue, compensation shall be given in proportion to the remaining amount after deducting any kind of tax paid or payable to the Government of Nepal in the year 2015 from the total collection. 10. Compensation for mortgaged Birta land: If any Birta land of category "A" is being enjoyed by someone as usufructuary mortgage in lieu of a loan given, the compensation payable under this Act shall be received by the person enjoying the land under usufructuary mortgage. Provided that if the amount of compensation exceeds the principal amount of the loan taken by the person under usufructuary mortgage, the excess amount shall be received by the person giving the usufructuary mortgage according to the procedure set out in the Schedule, and if it is less, the mortgagee shall have no claim against the Birtawal or anyone else. 11. Granting land tax exemption for certain Birta land: (1) Land tax under Section 4 shall not be levied, until other arrangements are made for operating the trust according to its nature and condition, on Birta land held as Guthi (trust) of the following types:- (a) Birta land held as Guthi on behalf of the Government of Nepal. (b) Birta land which, even if previously established by the people, was taken over by the Government of Nepal to operate when relinquished, or was confiscated

by the Government of Nepal or taken over for any other reason and operated as Guthi by the Government of Nepal, and (c) Birta land held as Guthi granted by the Government of Nepal. Amended by the Revenue Tribunal Act, 2031.(2) A case concerning whether any land is of the type under clause (a), (b) or (c) of sub-section (1) shall be heard by the Amended by the Judicial Administration Reform (Fourth Amendment) Act, 2043. District Court, and an appeal against that shall lie to the Amended by the Some Nepal Acts Amendment Act, 2072. High Court. 12.

Rights of tenants from Birta tenants: (1) If any person has a tenancy right in any Birta land of category "B" converted into Raikar under this Act, then when the Birta land of category "B" is registered as Raikar in the name of the Birtawal as the landowner, the name of the person holding the tenancy right shall also be registered as a tenant, and such tenant shall not be deprived of enjoying the tenancy right and interest acquired by him in the capacity of a tenant as before. (2) When Birta land of category "A" is registered in the name of the tenant and such tenant becomes the landowner, a person taking land for cultivation from such landowner, whether before or after the commencement of this Act, shall be a tenant under the Land-related Act and shall acquire the rights of a tenant. Added by the Birta Abolition (Third Amendment) Act, 2049.12A. Special provision for registering Birta land: Birta land of category "B" that has already been converted into Raikar and registered in anyone's name up to the end of Ashadh 2049 shall only be registered in the name of the person cultivating such land under Section 7A. After that period, Birta land of category "B" shall not be registered in the name of any Birtawal, and even if registered, it shall not be recognized. Provided that if a case regarding conversion to Raikar or registration is pending in court before the end of Ashadh 2049, it shall be according to the court's decision, and if a Birtawal has submitted an application to the Revenue or Land Revenue Office for conversion to Raikar and registration in his name and has continuously pursued the proceedings, and the person cultivating the land has not submitted an application for conversion to Raikar and registration, it shall be according to the decision of the Revenue or Land Revenue Office. Added by the Birta Abolition (Third Amendment) Act, 2049.12B. Registration required within time limit: If any Birta land of category "B" is not registered in his name by the person cultivating it within the period specified by the Government of Nepal under Section 7A, such land shall be dealt with under prevailing law as if land revenue has not been paid. 13. Power to make rules: The Government of Nepal may make rules for the purpose of implementing this Act. 14. Repealed by the Birta Abolition (Amendment) Act, 2018 15.